Contract

02/01/2025

Yacht management agreement – M/Y Aurelia

Parties

Azur Marine Services S.A.M. and Aurelia Yachting Ltd (together the "parties").

Recitals

Aurelia Yachting Ltd, registered at Harbour Place, George Town, Grand Cayman, owns the motor yacht M/Y Aurelia and wishes to entrust its technical, crew and financial management to a professional manager.

Azur Marine Services S.A.M. is a yacht management company established in Monaco, holding the professional approvals required for that activity.

1. Appointment

The Owner appoints the Manager to manage the Vessel on its behalf, as agent, in accordance with this Agreement and with the Owner's instructions. The Manager accepts the appointment and undertakes to act with the diligence of a prudent professional manager.

The Manager acts in the name and for the account of the Owner. Contracts concluded by the Manager for the Vessel are concluded on behalf of the Owner; the Manager is not personally liable for their performance.

2. Technical management

The Manager organises the maintenance of the Vessel, the class and flag surveys, the yard periods and the repairs, selects the suppliers and contractors in accordance with its procurement policy, and supervises the works.

Any single expense above EUR 15,000.00 excluding VAT requires the prior written approval of the Owner, except in an emergency affecting safety, in which case the Owner is informed within 24 hours.

3. Crew management

The Manager recruits, employs or contracts and administers a crew of 14 persons, manages their rotations, payroll, social security and training, and ensures compliance with the Maritime Labour Convention 2006.

Crew wages are paid by the Manager out of the funds provided by the Owner and recharged at cost.

4. Financial management

The Manager keeps separate accounts for the Vessel, pays the Vessel's suppliers, and reports monthly to the Owner: budget versus actual, cash position, commitments, crew changes and technical status.

Third-party costs are recharged to the Owner at cost, without mark-up, with copies of the supporting invoices. The Owner funds the operating account monthly in advance on the basis of the approved budget.

5. Management fee

The Owner pays the Manager a fixed management fee of EUR 40,000.00 per month excluding VAT (EUR 48,000.00 including VAT at 20%), invoiced on the first day of each month and payable within 15 days.

The fee is reviewed annually on 1 January in line with the Monaco consumer price index.

6. Budget

The Manager submits an annual operating budget before 30 November of each year for approval by the Owner. The approved budget for 2026 is set out in Schedule 1.

7. Definitions and interpretation

In this Agreement, unless the context otherwise requires: "Agreement" means this agreement and its schedules; "Business Day" means a day other than a Saturday, Sunday or public holiday in the Principality of Monaco; "Confidential Information" means any information disclosed by one party to the other in connection with this Agreement, whether before or after its signature; "Vessel" means any yacht under the management of Aurelia Yachting Ltd for which Services or Goods are ordered under this Agreement.

Headings are for convenience only. References to clauses and schedules are to clauses of and schedules to this Agreement. Words in the singular include the plural and vice versa. Where there is a conflict between the body of this Agreement and a schedule, the body of this Agreement prevails.

8. Term

This Agreement takes effect on 02/01/2025 and continues for an initial period of three years. It is then renewed automatically for successive periods of twelve months unless either party gives written notice of non-renewal at least three months before the end of the current period.

9. Orders and documentation

Each supply under this Agreement is the subject of a purchase order issued by Aurelia Yachting Ltd in accordance with its procurement policy PRC-FIN-04, except where this Agreement expressly provides otherwise. A purchase order quotes the vessel, the quantities, the prices and the delivery date.

Each delivery is accompanied by a delivery note, and each service by a service report, signed on board by the Master, the Chief Engineer or their delegate. Only the quantities recorded as received on the delivery note may be invoiced.

10. Invoicing

Azur Marine Services S.A.M. issues one invoice per purchase order or per delivery, addressed to accounts.payable@azurmarine.example, stating the purchase order number, the delivery note or service report number, the vessel, and every mention required by the applicable VAT legislation.

Invoices that do not comply with this clause are returned and are not considered received for the purpose of calculating the payment term.

11. Payment

Invoices of the Manager are payable within 15 days by bank transfer to the Manager's account with Banque Riviera Monaco. Recharges of third-party costs are payable on presentation of the monthly statement.

12. Bank details

Payments are made exclusively to the bank account stated in Schedule 2. Any change of bank details is notified by a letter signed by an authorised representative of Azur Marine Services S.A.M. and is effective only after confirmation by telephone by Aurelia Yachting Ltd on the number stated in Schedule 2. Aurelia Yachting Ltd is not liable for any payment made in good faith to the account stated in Schedule 2.

13. Warranties

Azur Marine Services S.A.M. warrants that it holds all licences and approvals required to perform this Agreement, that its personnel are qualified and that the Goods and Services comply with the applicable flag, class and international requirements, including SOLAS and MARPOL where relevant.

Azur Marine Services S.A.M. remedies at its own cost any defect notified within twelve months of delivery or completion.

14. Liability

Except in the case of fraud, gross negligence, wilful misconduct, death or personal injury, the aggregate liability of each party under this Agreement in any contract year is limited to the total amount invoiced under this Agreement during the previous twelve months. Neither party is liable for loss of profit, loss of charter, loss of use of a vessel or any indirect loss.

15. Insurance

Azur Marine Services S.A.M. maintains, with reputable insurers, public and product liability insurance with a limit of not less than EUR 2,000,000 per occurrence, and employer's liability insurance as required by law, and provides certificates on request.

16. Confidentiality

Each party keeps the other party's Confidential Information confidential and uses it only for the purpose of this Agreement. Information on the vessels, their owners, guests, itineraries and crew is Confidential Information. This obligation survives termination for five years.

17. Data protection

Each party processes personal data received under this Agreement in accordance with Monegasque Law No. 1.565 of 3 December 2024 on the protection of personal data and, where applicable, Regulation (EU) 2016/679, only for the purpose of this Agreement and with appropriate security measures.

18. Anti-bribery and sanctions

Each party complies with applicable anti-corruption laws and with the sanctions regimes of the Principality of Monaco, the United Nations and the European Union. Breach of this clause is a material breach.

19. Subcontracting

Azur Marine Services S.A.M. may not subcontract all or part of its obligations without the prior written consent of Aurelia Yachting Ltd, and remains liable for its subcontractors.

20. Audit

Aurelia Yachting Ltd and its auditors may, on fifteen Business Days' notice and no more than once a year, audit the records of Azur Marine Services S.A.M. relating to the prices and quantities invoiced under this Agreement.

21. Force majeure

Neither party is liable for a failure caused by an event beyond its reasonable control, provided it notifies the other party promptly and uses reasonable efforts to mitigate its effects. If the event lasts more than sixty days, either party may terminate this Agreement by written notice.

22. Termination

Either party may terminate this Agreement by written notice with immediate effect if the other party commits a material breach that is not remedied within thirty days of a notice requiring it to do so, or becomes insolvent.

Termination does not affect accrued rights. Purchase orders issued before termination are completed under the terms of this Agreement unless Aurelia Yachting Ltd cancels them in writing.

23. Notices

Notices are given in writing to the addresses stated in Schedule 2, by registered letter or by e-mail with confirmation of receipt. Operational communications may be made by e-mail between the contacts listed in Schedule 2.

24. Assignment

Neither party may assign this Agreement without the prior written consent of the other, except that Aurelia Yachting Ltd may assign it to an entity of the Azur Yachting group.

25. Entire agreement, variation and waiver

This Agreement constitutes the entire agreement between the parties on its subject matter. It may be varied only in writing signed by both parties. A failure to exercise a right is not a waiver of that right.

26. Governing law and jurisdiction

This Agreement is governed by Monegasque law. The courts of the Principality of Monaco have exclusive jurisdiction, after an attempt at amicable settlement of thirty days.

Schedule 1 – Approved operating budget 2026 (EUR)

Item	Budget 2026
Crew wages and benefits	100,800.00
Fuel and lubricants	410,000.00
Maintenance and repairs	520,000.00
Berth and marina	57,600.00
Insurance (hull & machinery, P&I)	52,000.00
Provisions and guest supplies	180,000.00
Communications and IT	36,000.00
Safety and certification	44,000.00
Management fee (net of VAT)	480,000.00

Schedule 2 – Contacts and bank details

Party	Contact	Telephone	E-mail
Manager	Philippe Andrieu (CEO)	+377 97 70 41 00	p.andrieu@azurmarine.example
Manager – finance	Claire Martin (Finance Director)	+377 97 70 41 02	c.martin@azurmarine.example
Owner	Owner's office	+1 345 949 7700	office@aurelia-yachting.example

Manager's bank account: Banque Riviera Monaco, IBAN MC78 1273 9000 0100 0215 4876 318, BIC BRMCMCMXXXX.

Signatures

Party	Name and function	Date
Azur Marine Services S.A.M.	Philippe Andrieu, Chief Executive Officer	02/01/2025
Aurelia Yachting Ltd	Director	02/01/2025